

TENTATIVE RULINGS FOR DEPT. S36 6/5/2026
BEFORE THE HONORABLE JOSEPH WIDMAN

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

ATTENTION: Commencing December 10, 2022, the Court will no longer regularly provide an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a "Stipulation and Order For Appointment of Official Reporter Pro Tempore" to the court in the form found on the Court's website. If counsel are appearing for the hearing remotely, the Stipulation can be emailed to the Judicial Assistant for Department S-36 at kkosmatka@sb-court.org. The Court may sign the Order appointing the Certified Shorthand Reporter as the official Court Reporter Pro Tempore. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

REFER TO THE GENERAL ORDERS AND FORMS POSTED ON THE COURT'S WEBSITE.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court's website after 3:00 p.m. the day before the hearing at [Tentative Rulings | Superior Court of California | County of San Bernardino](#). You may appear by remote appearance at the hearing. (<https://www.zoomgov.com/my/dept.s36>) You must appear at the hearing, unless ordered otherwise, prepared to address the issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULIN

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

26520 KEISSEL RD., LLC,
Plaintiff,

v.

TAMMI WILKERSON,
Defendant.

Case No.: LLTVA2506172

**[TENTATIVE] ORDER DENYING
PLAINTIFF'S MOTION FOR
SUMMARY JUDGMENT**

I. INTRODUCTION

This is an unlawful detainer action. On December 23, 2025, plaintiff 26520 Keissel Rd., LLC (Plaintiff) initiated the instant action against defendant Tammi Wilkerson (Defendant Wilkerson).

Plaintiff alleges on January 1, 2024, Defendant entered into an oral agreement for a month-to-month tenancy for \$650/month as to the premises located at 26520 Keissel Road #RV-42 in Colton, California (the Premises). Defendant was served with a 3/30 Day Mobile Home

notice on October 8, 2025. Plaintiff is requesting past-due rent of \$6,500, forfeiture of the agreement, and other damages.

On May 15, 2026, Plaintiff filed the instant Motion for Summary Judgment (Motion), supported by a declaration from Martina Coffelt (Coffelt). Defendant filed her Opposition on May 22, 2026, supported by a declaration from the Defendant. Plaintiff filed a Supplemental Memorandum on May 26, 2026, along with a supplemental declaration from Coffelt.

On May 28, 2026, the Court continued the matter for Defendant to serve her Opposition and present rent receipts to the court. Parties were ordered to submit their documents by June 1, 2026.

On June 1, 2026, Plaintiff filed its Second Supplemental Memorandum of Points and Authorities in Support of Reply to Opposition, along with a second supplemental declaration from Coffelt and Objections in Reply to the Declaration of the Defendant. Defendant filed her Supplemental Memorandum of Points and Authorities and Supplemental Declarations on June 1, 2026. On June 2, 2026, Defendant filed an Amended Opposition and Amended Memorandum of Points and Authorities.

After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.

II. EVIDENTIARY OBJECTIONS

Along with its second supplemental brief, Plaintiff files an objection to the declaration of the Defendant filed in support of her Opposition as the declaration fails to comply with section 2015.5 of the Code of Civil Procedure and *Kulshrestha v. First Union Commercial Corp.* (2004) 33 Cal.4th 601. Plaintiff requests the court strike Defendant's Opposition and treat the Motion as unopposed.

While Plaintiff's objection under Code of Civil Procedure section 2015.5 is well taken, the Court OVERRULES the objection as moot. First, Defendant submitted a Code-compliant declaration with her supplemental brief. While new evidence is generally not allowed in reply papers for summary judgment motions under section 437c, subdivision (a)(4) of the Code of Civil Procedure, subdivisions (a) and (b) do not apply to unlawful detainer actions. (Code Civ. Proc., § 437c, subd. (s).) Moreover, the matter is moot. As set forth below, Plaintiff fails to meet its initial burden, and it is unnecessary for the court to consider the opposition. (*Swanson v. Morongo Unif. Sch. Dist.* (2014) 232 Cal.App.4th 954, 963.)

III. LAW APPLICABLE TO MOTIONS FOR SUMMARY JUDGMENT

In an unlawful detainer action, a motion for summary judgment may be made any time after the answer is filed and on as little as five days' notice. (Code Civ. Proc., § 1170.7.) However, the notice period is extended where service is by mail, express mail, or fax. (Code Civ. Proc., § 1013; Rule of Court, Rule 3.1351, subd. (a).) Code of Civil Procedure section 437c, subdivisions (a) and (b) do not apply to unlawful detainer actions. (Code Civ. Proc., § 437c, subd. (s).) Thus, a separate statement is not required. In addition, any opposition or reply may be made orally at the hearing or in writing. (Rules of Court, Rule 3.1351 subd. (b).)

In an unlawful detainer action, the "...only 'triable' issue is the right to possession and incidental damages resulting from the unlawful detention." (Cal. Prac. Guide: Landlord-Tenant § 8:4, citing *Martin-Bragg v. Moore* (2013) 219 Cal.App.4th 367, 385.) The only damages recoverable in an unlawful detainer action are those directly related to the unlawful detention. (Cal. Prac. Guide: Landlord-Tenant § 8:6, citing *Vasey v. Cal. Dance Co., Inc.* (1977) 70 Cal.App.3d 742, 748.)

IV. WHY THE COURT IS DENYING SUMMARY JUDGMENT

Plaintiff moves for summary judgment pursuant to sections 437c and 1170.7 of the Code of Civil Procedure, arguing it is entitled to a judgment as a matter of law as it has established all the elements for a right to possession. The Court denies Plaintiff's Motion in its entirety.¹

"The basic elements of unlawful detainer for nonpayment of rent...are (1) the tenant is in possession of the premises; (2) that possession is without permission; (3) the tenant is in default for nonpayment of rent; (4) the tenant has been properly served with a written three-day notice; and (5) the default continues after the three-day notice period has elapsed." (*KB Salt Lake III, LLC v. Fitness Internat., LLC* (2023) 95 Cal.App.5th 1032, 1045.)

Plaintiff fails to meet its initial burden of proving an unlawful detainer against the Defendant. There must be an existing landlord-tenant relationship or other unlawful detainer relationship between the parties for an unlawful detainer action to proceed. (*Taylor v. Nu Digital Marketing, Inc.* (2016) 245 Cal.App.4th 283, 289; *see also* Cal. Prac. Guide: Landlord-Tenant § 8:47.) In support of its Motion, Plaintiff submits three declarations from Coffelt. In her initial declaration, Coffelt states, "On January 1, 2024, Defendant Tammi Wilkerson entered into a rental agreement with Plaintiff for rental of the RV space. Defendant agreed to pay monthly rent of \$650 due on the first day of each month." In her first supplemental declaration, Coffelt declares, "According to my rent ledger, defendant rented the space occupied by her RV in May 2024 and moved on it [sic] in June 2024." In her second supplemental declaration, Coffelt now states:

Defendant Tammi Wilkerson executed a space rental agreement for recreational vehicle (the rental agreement) with plaintiff on May 26, 2024. She agreed to pay \$650.00 as rent every month on the 1 day [sic] of each month and a late fee of \$100 if rent is not paid by the 5th of each month. The tenancy commenced on

¹ As a preliminary matter, the Court finds Plaintiff waived any defect regarding filing and service of Defendant's Opposition by arguing on the merits in its second supplemental brief. (*Clark v. Stabond Corp.* (1987) 197 Cal.App.3d 50, 58-59.)

June 1, 2024. A true and correct copy of the rental agreement signed by the defendant is attached and marked as exhibit “1”.

The rental agreement attached as exhibit 1 to Coffelt’s second supplemental declaration, however, is purportedly between Defendant and “Olive Dell RV Resort.” Coffelt’s declaration is silent as to the relationship between Plaintiff and “Olive Dell RV Resort.” Further, Coffelt’s statements offer different facts as to when the alleged agreement was made, the terms of the agreement, whether the agreement was oral or written and who the parties to the agreement were.

Based on the foregoing, the Court finds Plaintiff has not satisfied its initial burden of proving each element of Plaintiff’s cause of action for unlawful detainer. Specifically, Plaintiff has not proved that a landlord-tenant relationship or other unlawful detainer relationship between the parties exists.

V. CONCLUSION

Plaintiff’s Motion for Judgment is respectfully DENIED.

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]
Hon. Joseph B. Widman
Judge of the Superior Court

SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF SAN BERNARDINO

JOSE ESQUIVEL,

Plaintiff,

v.

DONALD BISHOP, ET AL.,

Defendants.

Case No.: CIVSB2436488

**[TENTATIVE] ORDER DENYING
WITHOUT PREJUDICE MOTIONS
TO COMPEL FILED BY
PLAINTIFF JOSE ESQUIVEL**

VI. INTRODUCTION

This is a breach of contract action. On December 6, 2024, Plaintiff Jose Esquivel filed his initial Complaint against Defendants Donald Bishop, Adman Bishop, and Stacey Bishop. The operative First Amended Complaint (FAC) alleges causes of action for: (1) breach of contract; (2) breach of implied covenant of good faith and fair dealing; (3) conspiracy to commit fraud; (4) fraud; and (5) unjust enrichment. Defendants answered.

The FAC alleges that since 2006 and until 2024, Defendants engaged in fraudulent conduct and enriched themselves by making fraudulent promises to Plaintiff of ownership to The

Old Town Bakery, Inc. In exchange, Plaintiff offered his efforts, special skills, and knowledge in making the variety of products to be advertised and sold at Defendants' business. In 2006 Defendants' business was barely making it by selling cookies and cupcakes. Once Defendants learned of Plaintiff's skills, his recipes and experience, Defendants lured and induced Plaintiff to pour in all his efforts, recipes and sweat equity into the business in exchange for 25% of the business. Plaintiff fulfilled his obligations while Defendants continued to promise regularly that he was entitled to said 25% interest and to continue to do his maximum efforts but instead of giving Plaintiff his 25%, Plaintiff only received the continued promise. (FAC ¶¶ 7-17 and 19-35.)

On June 6, 2025, Plaintiff served Form Interrogatories, Set One (FRG#1), Special Interrogatories, Set One (SRG#1), and Request for Admissions, Set One (RFA#1) on Defendants Adman Bishop and Stacey Bishop. (Flores-Burt Decl. ¶ 2, Exh. 1.) Defendants Adman Bishop and Stacey Bishop served their initial responses on July 13, 2025. (Flores-Burt Decl. ¶ 3.)

On July 14, 2025, Plaintiff's counsel sent a Meet and Confer Letter to Defendants' counsel Tyler Brown addressing alleged deficiencies. (Flores-Burt Decl. ¶ 4, Exh. A.) Defendants' counsel responded that supplemental responses would be provided by August 8, 2025. At that time, both counsel agreed to extend the time to file a motion to compel until September 15, 2025. (Flores-Burt Decl. ¶ 5, Exh. B.)

The supplemental responses were served on August 7, 2025, but Plaintiff asserts that they (1) were equally deficient as the original responses; (2) were still not code compliant; and (3) added additional objections which had not been timely raised. (Flores-Burt Decl. ¶ 6, Exh. 3.)

On August 20, 2025, Plaintiff's counsel sent a further meet and confer letter to Defendants' counsel requesting they further supplement Defendants' responses to the requested

discovery. (Flores-Burt Decl. ¶ 7, Exh. C.) No further supplemental responses were served. (Flores-Burt Decl. ¶ 8.)

Now Plaintiff moves to compel Defendants Adman Bishop's and Stacey Bishop's further responses to FRG#1, SRG#1, and RFA#1. Defendants filed oppositions. Plaintiff filed replies. After issuing a tentative ruling and holding a hearing on the motion, the Court now issues its final ruling.²

VII. APPLICABLE LAW

A party who deems responses to propounded interrogatories (form or special) as evasive or incomplete, an objection is without merit or too general, or the exercise of the option to produce documents is unwarranted or the required specification of those documents is inadequate can move to compel further responses. (Code Civ. Proc., § 2030.300, subd. (a).) Similarly, a party who deems responses to propounded requests for admissions as evasive or incomplete, or an objection is without merit or too general can move to compel further responses. (Code Civ. Proc., § 2033.290, subd. (a).)

The motion to compel must be noticed within 45 days of receipt of verified responses (plus the additional time if not personally served). (Code Civ. Proc., §§ 2030.300, subd. (c), 2033.290, subd. (c).) The motion to compel must be accompanied by a declaration stating facts showing a reasonable and good faith attempt to resolve informally the issues presented by the motion before filing the motion. (Code Civ. Proc., §§ 2030.300, subd. (b), 2033.290, subd. (b), 2016.040.)

The Court shall impose monetary sanctions against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further responses unless the court finds that

² The Court finds that the moving party has complied with its meet-and-confer obligation.

the sanctionable party acted with substantial justification or other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§ 2030.300, subd. (d), 2033.290, subd. (d).)

VIII. WHY THE COURT IS DENYING THE MOTION

A. No Accompanying Separate Statement

Under California Rules of Court, rule 3.1345, a motion to compel further responses to Interrogatories or requests for admissions must be accompanied by a separate statement that includes the specific interrogatory in dispute, the response provided to the interrogatory in dispute, and the factual and legal reasons why further responses are sought. (Cal. Rules of Court, Rule 3.1345.)

The Court is DENYING this motion because Plaintiff failed to comply with this rule. (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 892-93, rehearing denied, review denied (trial court did not abuse its discretion in denying plaintiffs' motion to compel discovery, as plaintiffs failed to comply with rule governing format of discovery motions, which required that any motion involving content of discovery request or responses to such request be accompanied by a separate statement); *see also Neary v. Regents of University of California* (1986) 185 Cal.App.3d 1136, 1145.)

Plaintiff tried to remedy the procedural error on reply by providing separate statements. However, this is inappropriate and a breach of Defendants' due process rights.

B. Sanctions

Plaintiff requests sanctions under all six motions against Defendants Adman Bishop and Stacey Bishop. But since all of Plaintiff's motions are being denied as procedurally defective, the Court is DENYING Plaintiff's request for sanctions.

Defendants Adman Bishop and Stacey Bishop also request sanctions in their oppositions to all six motions. This request is also denied. These motions were brought in good faith by Plaintiffs, notwithstanding their procedural defect.

IX. CONCLUSION

Plaintiff's motions to compel a further response to FRG#1, SRG#1 and RFA#1 are respectfully DENIED WITHOUT PREJUDICE.

Plaintiff's requests for sanctions and Defendants Adman Bishop's and Stacey Bishop's requests for sanctions are DENIED.

IT IS SO ORDERED.

Dated: _____

[TENTATIVE – NOT FINAL]
Hon. Joseph B. Widman
Judge of the Superior Court